IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.140

C.P.(CAA)/56(AHM)2022 in
C.A.(CAA)/27(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

Gandhinagar Hospitalities Pvt Ltd **.....Applicant**
United Eduplus Pvt Ltd

.....Respondent

Order delivered on: 19/06/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant	: Ms. Dharmishta Raval, Adv. For the Income Tax
Department	: Ms. Pankti Shah, Adv. for Ms. Maithili Mehta, Adv.
For the RD	: Mr. Shiv Pal Singh, Assistance Director

ORDER

This is a petition filed under Section 230-232 of the Companies Act, 2013. It is submitted by the Learned Counsel that Income Tax Department has raised objections as regards to the resulting company saying that the Scheme is to avoid taxes by adjusting the losses of the demerged division against the profit of the resulting company. It is also submitted that RoC has also filed reply, but there is no objections in substance. On a query that what are the distinct division of the demerged company, learned Counsel seeks time to put required details on record.

With this, list the matter on 27.06.2023.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

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